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YALE POLITICAL MONTHLY

October 1981 Vol. 3 No. 1

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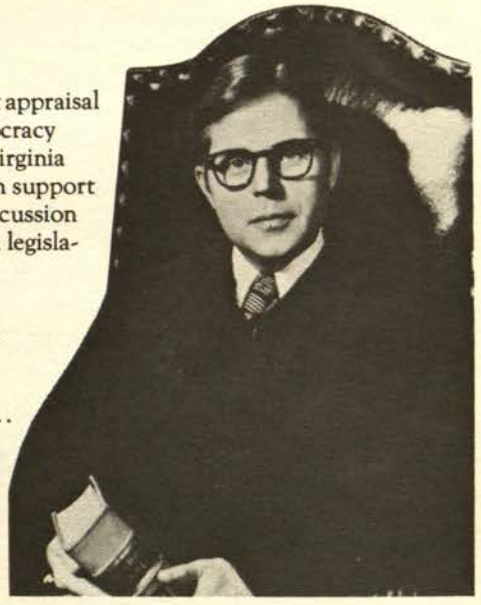
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Evaluating the Reagan Revolution

Stuart Eizenstat

America in modern times has gone through alternating political phases. Liberal periods, marked by activism, new programs, new efforts, have traditionally been followed by more conservative periods during which these programs were consolidated and during which the nation could catch its breath before the next liberal period began. These conservative periods often served to help prune some of the underbrush that sprouted up quickly during more creative eras.

But, what President Ronald Reagan is doing in Washington now represents something uniquely different from past periods of conservative Presidents. This is not a consolidation phase through which we are going. It is an effort to fundamentally change the direction and course which this country has taken through both Republican and Democratic administrations--albeit with some backing and filling along the way--since the first term of Franklin Roosevelt. The administration has skillfully used the umbrella of the nation's economic problems to do what philosophically it has always wanted to do--fundamentally shift responsibility from the public to the private sector and from Federal to State governments in virtually every facet of American life.

First, the Reagan Administration largely rejects the modern role of the Federal government in providing a broad range of health, education, and welfare services to the disadvantaged, the working poor,and the middle class. It rejects the belief that it was the government's role to remove inequities in society, to help the poor enter the mainstream of American life, to help encourage private sector energies into constructive social paths, to employ the hard core unemployed, to rebuild our urban areas by supplementing the efforts of private enterprise.

Second, this administration is distinctly different from past conservative administrations in its concept of income distribution. Where the progressive income tax system attempts to levy the highest taxes on those best able to pay and the tax cuts of the last 50 years generally have placed the bulk of their emphasis on the middle and lower middle class, the Kemp-Roth tax proposals which President Reagan has embraced consciously provides greater tax incentives for the upper income. The bulk of the budget cuts affect lower income Americans while upper income Americans received proportionately high benefits from tax cuts.

Third, this administration has consciously rejected the economics of Keynes and has supplanted for that philosophy (which was based on stimulating the economy at times of low inflation and high unemployment and destimulating it when the reverse was the case) a supply-side theory of tight money, lower Federal expenditures and deep personal tax cuts, together with accelerated depreciation for business.

Fourth, in ways that far outstrip his predecessors, Reagan views the marketplace as the sole allocator of national resources and as the determinate of the fate of individuals.

Fifth, the administration has a heavy moral tinge to it--an anti-Communism based not simply on its threat to our national security, but on its godlessness; a desire to restore prayers to schools together with the Biblical account of creation; a desire for a Constitutional amendment to ban all abortions.

Last, in foreign affairs the administration has clearly rejected any effort at global humanitarianism and human rights for a more nationalistic foreign policy. The world's problems are viewed significantly through the prism of a bi-polar world--the Soviet Union and its satellites against the United States and its allies.

It is important to look at those programs which have been saved from the budget scalpel--the so-called safety net programs which the administration contends are for "the truly needy." We should recognize that these safety net programs were not saved because they protect the truly needy. Rather, they are political safety nets to preserve the political strength of the administration. To attack them with the same budget fervor as they have other programs would lead to an uprising by the middle class and the elderly which would threaten the administration. These seven safety net programs cost $220 billion. Fully $200 billion of this amount comes from three programs--Social Security, Medicare, and veterans' benefits, which are non-means tested and provide benefits to a broad range of Americans, not simply the truly needy. In fact, there are holes in the administration's safety net concept since programs like health screening programs for poor, pregnant women, Medicaid for disadvantaged Americans, food stamps for the working poor and education aid for poor school districts are severely cut. The cumulative effect of the budget cuts is to disproportionately affect the Northeast and Midwest, reduce benefits to the poor and to drive the working poor so close to the income level of those who are completely on public assistance as to remove the work incentives which the administration favors.

The efforts of the administration require us to focus on the very basic question of the proper role of government for the balance of the 20th century.

While the Federal government may over the last several decades have tried to do too much too fast with too few resources, we cannot ignore the fact that the Federal government must assume national responsibilities which no other public or private institution or individual can do.

I would like to focus here on two domestic issues which will confront this country for the balance of this century and where the role of government is critical: non-inflationary economic growth and energy in-

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dependence.

First, the achievement of non-inflationary growth. This is the key to everything else. We cannot have a strong national defense, we cannot provide jobs for our people, we cannot afford the cost of government programs to promote health, education, and welfare without continued economic growth, which is not eroded by high inflation. Some over the last decade have urged that growth was a threat to our society. I reject this concept. Small is not beautiful. A no-growth philosophy consigns the poor to continued poverty and deprived to contimued deprivation. Unless real incomes are rising steadily, taxpayers will not willingly share their tax dollars to help those lower on the economic ladder. In the achievement of non-inflationary real growth, government does have a role, but that role must be re-examined as we move through this difficult decade. Let me suggest an outline of what that role should be.

First, the Federal government and regulatory agencies it created has been too involved in setting the economic rules of the game. Out of a desire to protect the consumer, restrictions on competition were developed in industry after industry. Rather than protecting the public, these regulations ended up protecting the industries that were to be regulated. It is a great irony that private industry which bemoans too much government regulation was often in the forefront of fighting President Carter's efforts to undo that regulation in many areas. The trucking industry fought efforts to deregulate the trucking industry; the airlines fought efforts to deregulate the airline industry; many companies in the communications field fought efforts to deregulate communications. Here we should be removing the government so that the competition of a free marketplace can better operate. It will produce stronger industries and, at the same time, will provide the public with the benefits of competition--lower prices and better service.

But, if there is a need for less government in the economic regulatory area, we must recognize that we cannot deregulate health, safety, and environmental protection. Here, the private sector has few incentives to accomplish the broader national good of protecting worker health and safety and the environment which supports us all. Nor can States rather than the Federal government do the job alone. They lack the expertise, the resources, and often the interest. In the environmental area, to give States too much latitude in setting their own environmental standards would be senseless since pollution knows no State lines. For the state of Ohio to decide on its own to burn high sulphur coal without any scrubbers may not effect Ohio, but will send pollutants to a number of states including the state of New York.

The Federal government rightly must have a role, but again that role must be re-examined in light of present realities. The Federal government is not an unlimited cornucopia of resources.

All regulations should be cost-effective. The least expensive and least burdensome means to regulate should be set which requires a given level of performance, but encourage the private sector to find the best ways to achieve it. Often the benefits do outweigh the costs of regulation. Congress is now considering whether to end the requirement for passive restraints in cars. While these would add $50 to $100 to the cost of a car, they would reduce auto insurance costs $40 to $80 every year. Even a year's delay would sacrifice $5 billion in benefits in injuries avoided, with and industry savings of only $500 million.

Likewise, in the area of providing jobs, the Reagan Administration is attempting to severely retard the Federal Governments role. The private sector creates five out of every six jobs and we must continue to create as many jobs possible in the private sector. But, we must also recognize that because of discrimination or their own lack of training or education, some will not be able to hold full-time jobs in the private sector. Here, the role of the Federal government should be to provide skill training to ease their entry into the private sector and to provide jobs to the extent our resources permit for those who still cannot find work. These jobs need not be dead-end jobs. There are railroad beds to be repaired and houses to be rehabilitated, parks to be maintained, and municipal services to be provided. We must insist that these jobs be meaningful and that training be an important component, but we should not turn our backs on the hard-core unemployed, and believe that "the marketplace" alone will take care of them.

So, too, in the fight against inflation the government has a role. In part, that role is to impose fewer costs on the private sector, to be less intrusive, to make regulation less-inflationary. But to me the Achilles heel of the Reagan Administration's economic program is the belief that the government has absolutely no role in attempting to moderate wage and price behavior. The Ad ministration seems to believe that we live in the days of Adam Smith when prices and wages were determined by small units, with small companies setting prices in competitive industries and bargaining with individual workers for their wages.

We do not live in those simple days any more. Powerful corporations and large unions exert a tremendous influence on the economy. There is little or no competition in some industries and wages are increasingly impervious to the conditions of the economy or the rate of unemployment.

I believe the government does have a role in encouraging the private sector to moderate wages and prices and in which our government is in its infancy compared to other modern democracies. Our government should help develop and incomes policy--to encourage wage and price moderation, based on a social contract between business and labor. Government can be the mediator and the conciliator between conflicting labor and business constituencies. Germany and Japan run far larger budget deficits than does the United States, but have much lower inflation in part because of informal arrangements in which the government works with business and labor to obtain wage and price moderation. In addition, in Germany, workers serve on the

boards of directors of major corporations, while in Japan the government has been able to encourage the private sector to provide what amounts to lifetime job guarantees for workers. In each instance, responsibility of management on boards and the security of a job guarantee help assure moderate wage demand.

If voluntary measures cannot be arranged, I believe for temporary periods of time that wage and price controls are necessary under the unfortunate circumstances our nation now finds itself. Inflationary behavior by each of us in our every day activities has become so ingrained that only a social contract or controls will reverse the psychology. Such arrangements would not substitute for the long-term policies we need to stimulate additional savings, productivity, and capital investment, but would permit them to be implemented in a more tranquil environment.

It is the current Administration's belief that budget and tax cuts alone can change inflationary psychology. I do not accept the notion that reducing food to needy families or health screening from a disadvantaged pregnant mother can change our inflationary expectations while giving tax breaks to the wealthy can accomplish this rule.

The second great area in which government must continue to have a role is in obtaining energy independence.

Each decade since World War ll we have been more dependent than the previous one on expensive and uncertain foreign oil. Only ten years ago, we spent less than $5 billion for the energy we imported. Last year, that figure was $80 billion. That is money out of our pockets which could otherwise be invested in productive pursuits at home but instead goes to OPEC abroad. Energy is the most important issue in the 1980's to our economic vitality and to our national security.

Our continued deep dependence on foreign oil, despite the progress made by President Carter in the last four years, is a clear and present danger to the United States and is a threat to the quality of each of our lives. The electricity which lights the hall in which we meet, the gasoline which drives the cars most of us have, the heating oil which warms dormitories and apartments, are significantly dependent on a fragile and thin line of oil tankers which stretch from the most turbulent area in the world, the Persian Gulf, to our country.

Because of the cutoff in the production of oil from Iran in 1979, the price of oil went up 125 percent between February 1979 and February 1980--in that 12-month period it increased more than it had in the whole history of the use of oil. If a similar occurrence occurred in Saudi Arabia our economy and the economies of the western world would be devastated and chaos would result. We would have few options short of military force.

We must embark on an all-out mobilization to achieve energy self-sufficiency by the end of this century.

Here again, the Reagan Administration believes that government is the problem and not the solution and that the marketplace will solve all problems. They are planning to abolish the Department of Energy and to end the government's main energy conservation programs, including ending energy audits by utilities and building and appliance standards.

Here again, government was too involved with too much detail in too many areas, but to totally reject the role of government is to try to live in a simpler era than we find ourselves in.

The pricing of energy should be determined by the marketplace. As painful as it has been to remove controls from crude oil and natural gas, that process was an important one. Controls created an incentive to import and a disincentive to produce and conserve energy in this country.

But, a sensible policy recognizes that decontrol comes at a cost--higher prices which many cannot afford to bear. Therefore, the government has a role here. Through a windfall profits tax, the government obtains a portion of the revenues and uses them for purposes to which private companies could not be expected, such as protection of the poor through the low income energy assistance program.

The Reagan Administration believes that energy conservation means being chilly in the winter and hot in the summer. That is not what energy conservation means. It means using our energy efficiently so that we husband our precious and dwindling natural resources. While higher prices help achieve conservation they cannot do the job fast enough. Reasonable, cost effective energy conservation requirements are a necessary supplement to the operation of the marketplace. Here again when we regulate, we should regulate with common sense and a recognition of the costs that are imposed. But, we should recognize there are far higher national costs to not encouraging energy conservation.

Each of us must recognize and take to heart the fact that we live in the twilight of the crude oil era. The good Lord only put so much crude oil on the face of the earth and most of it has now been found. That which is left is much more difficult and expensive to find and develop. We can now foresee the day when world demand for oil outstrips production. By that time, which may come in the next 10 to 15 years, if we do not have alternatives to crude oil this will be a dismal plant to inhabit. We have it within our capacity to develop alternatives to crude oil--in particular, solar and synthetic energy.

We have more than a 200-year supply of coal in the United States, we have more oil in the shale of five western States than two Saudi Arabias.

Again, there is a responsible role for government. Certainly, the marketplace will be an important determinate in encouraging private industry to develop solar and synthetic energy, but through non-intrusive government incentives such loan guarantees, price guarantees, and take-and-pay contracts, we can encourage the private sector to create these industries faster than they otherwise would. The marketplace will not work fast enough and we do not have the luxury of time. Every year counts. We will not achieve energy independence by the end of this century and let alone by the end of this

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Market Myths and the Tuition Tax Credit

Stanley P. Jaskiewicz

Senator Daniel Patrick Moynihan (D-NY) recently used these pages to argue for the tuition tax credit program he cosponsored in the "Tuition Tax Relief Act of 1981." Moynihan justified his program with two assertions. First, he claimed that private schools "...are public institutions in every sense save the auspices under which they operate." Second, he claimed that since they are really "public" institutions private schools do not compete with but instead are complementary to our publicly-funded institutions. Although he later quite correctly raised the murky questions of the constitutionality of such aid and of its importance as a policy issue, on his initial two points Moynihan, like many advocates of tuition tax credits, founders. As I shall explain, economic research has revealed significant differences in the workings of public and private schools, differences which underlie private schools' success and which are at odds with Moynihan's justification for aid.

Moynihan's choice of tuition tax credits as a vehicle for aid to private schools falsely applies the market metaphor (the theoretical basis for credits) to the education industry. Acting upon such a misunderstanding could well lead to the destruction of those unique aspects of private schools which enable their success and promote parental choice. By ignoring the real differences between public and private schools, Moynihan clouds the political issue of aid to a distinctly non-public method of schooling with the economic issue of how the aid is best delivered. If he wishes to aid private schools, let us debate that question alone; aid them directly if it is to be done, and thereby avoid the unwanted and uncertain effects caused by tax action which does not confront the issues.

Despite what Senator Moynihan says, private schools differ from public ones in significant areas beyond merely "the auspices under which they operate." The original 1964 Coleman Report *Equality of Eduational Opportunity* and subsequent research have demonstrated the importance of a child's peer group on his learning.

The best example of this is classroom discipline (or the lack of it), although this is not the sole form of peer group influence. Private schools, unlike their public counterparts, can exercise control over the composition of their student body and can thus offer a higher quality "supply" of education. One key component of the perceived higher quality that causes parents to choose private schools is thus due to their exclusive character.

That parents actively choose private schools points out a second significant difference: what Coleman called "home factors" will, on average, favor children in private (i.e. independent and parochial) schools. Put simply, a parent paying for an education which could be obtained for free will be more apt to deal with discipline of motivational problems which threaten his "investment." On both counts then, a school's selection of students and a parent's active choice of a private school, we see factors which render the education to be gained at a private school potentially more desirable, but which at the same time arise specifically because the school is not public.

Some evidence of the effects of these differences can be seen in one of the findings of the recent Coleman Report, *Public and Private Schools.* Private school students had, on average, fewer disciplinary problems, lower absenteeism, and higher achievement than did public school students, controlling for observable differences in family backgrounds. The question is whether these different outcomes are due simply to different financing systems causing better management, of rather to a fundamental difference in institutional character. If the latter, the issue is not merely the funding of an alternative method of providing "public education," as Senator Moynihan argues, but whether or not to fund a differently oriented and operated enterprise.

Suppose, however, that we resolve, through our elected representatives, this issue of funding in favor of the private schools. The question then arises as to the method—will a tuition tax credit bill in fact achieve the goals of its supporters? Naturally, under Moynihan's bill the parents of those children now in private schools would gain an immediate financial windfall of *$500* per year, amounting to a *$2.5* billion annual cost to the Treasury just for those already in school. There is also the problem that tax credits only benefit those who pay taxes: unless something is done to help the poor who pay little or no taxes at present, imposition of a tax credit, however noble the goals of its supporters, will almost surely cause the social fragmentation that its opponents fear.

This windfall, however, cannot be the sole aim of a program as indirect as tax credits. A broader goal, that of expanding America's educational opportunities both through more schools and easier financing, appears in the rhetoric of tax credits' supporters. According to the Moynihan bill, the "primary purpose" of the tax credit is to "enhance equality of educational opportunity for all Americans at the schools and colleges of their choices." The 1976 Democratic Party platform, cited by Moynihan in his article, supports "...a constitutionally acceptable method of providing tax aid...to ensure parental freedom in choosing the best education for their children." Given that the initial benefits would flow largely to the wealthy who already have children in expensive private schools, why use a tax credit of no value to persons without incomes large enough to tax?

The underlying rationale for two credits is that the market for education can approach pure competion. This is a fiction. Under the economic theory of a competitive educational market, the provision of tax credits

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would allow parents to choose public or private schools based on their merits alone, without regard to cost. The relative numbers of public and private schools, and their offerings, would adjust by the traditional market forces of supply and demand; undersubscribed schools would close, while schools in high demand would expand. Parents' choices of schools would be based on a thorough understanding of the options available to them and thus they would not knowingly deprive their children of a minimum standard of schooling. In short, in this perfect world, schools would no longer be limited by who is paying the bill but would instead respond to meet the needs and desires of students and parents in order to stay in existence. Although overly simplistic, this model captures the essence of the competitive market theory justifying tax credits (and the similar concept of vouchers) and indeed presents a desirable idealized world.

Alas, education is not an industry subject to the necessary preconditions for the market model to work, and there is ample research to prove it. Education cannot be produced by specified quantities of "inputs" as in farming or manufacturing since both the attributes that a group of schoolchildren bring to a classroom from their homes and the children's effects on each other contribute to the group's learning. A private school's ability to select for these qualities will of course restrict parental freedom of choice. Parents also do not generally have perfect knowledge of options available to them, a problem particularly applicable to the underprivileged to whom private schools are presumably closed because of the cost without tax credits. In education, unlike in traditional consumer goods, this consumer knowledge cannot be gained by trial and error or comparison shopping.

Empirical evidence demonstrates the high quality private schools of today do not expand in response to the pressures of demand seen in long waiting lists; we would not expect them to change under an increased demand caused by tax credits. The profit motive which theoretically would drive existing schools to expand or induce new schools to open is explicitly eliminated in the "not-for-profit" nature of both current private education and that encouraged by the Moynihan bill. On many counts then, the economic model justifying tax credits does not apply to the unique circumstances found in education, primarily because the "output," the achievement of students, is strongly influenced by the factors surrounding the students themselves as well as by the teachers at a school.

What then will be the real consequences of this misapplication of market theory to education? "Parental freedom" and "schools and colleges of (individuals') choice" will remain empty slogans without governmental action to compensate for the deficiencies described above. "Equality of educational opportunity" will remain a dream when private schools that were crowded and closed to various groups before tax credits continue to be crowded and closed to consumers of education who suddenly can afford better education yet have no quality outlet in which to spend this windfall. The government would have the choice of accepting that tuition tax credits had in fact had no impact, or taking action to ensure their effectiveness. Naturally, those who had believed the Senator's rhetoric and then found themselves severely disappointed would not idly stand by.

Government action to correct the problems which tax credits fail to solve might involve determining how to allot the limited number of private seats now partially paid for by public funding, intruding into private schools to guarantee minimum levels of quality (which it already does) and disseminating information about education options to give parents and students an informed choice. Under such a system, "parental freedom" would be realized in the expanded varieties of schools available to students. "Educational opportunity" would be as equal as the system designed to regulate who gets the seats in the better schools. Such intrusions, however, are probably not what Senator Moynihan has in mind.

Although the program presented above may appear to present an extreme view of the long term effects of tuition tax credits, experience shows that the Federal Government will not be able merely to open its coffers and let the "market" run its course until everyone is satisfied. In the early 1970's Alum Rock, California tried an educational voucher scheme which was economically analogous to the tuition tax credit. The vouchers had to be so regulated and modified to conform to "constitutionally permitted limits" and to meet local acceptance that in essence the governmental payment aspect was lost. Admittedly, Alum Rock was not the perfect test site because of its extreme poverty - the district accepted the voucher experiment only to get the NIE funds supporting it.

Constitutional questions presented the major obstacle--the courts barred the few private schools in the district from receiving aid, a major impediment to the plan. Instead of pressuring for new and better schools, parents demanded protection for neighborhood schools. As a result, the district kept open undersubscribed schools, and oversubscribed programs had to choose students by lottery, undermining the schools' ability to control the student body. Teachers feared the effects of school closings and subsequent larger classes on their jobs, and so sought to limit enrollments and also expansion of popular schools. To force the schools to compete, the district mandated that each school offer two special programs. In order to induce schools to accept disadvantaged students—whom schools would otherwise have avoided because of their lower skill levels—the district had to increase the value of their vouchers. Most revealingly, even at the program's height, in the third and final year, only 18% of parents chose not to send their children to the neighborhood school—a weak testimonial for the supposed virtues of credits and voucher plans.

Many more such examples of weakness, loopholes, and legitimate, unforseeable problems will likely crop

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Means and Ends of Racial Equality

Adam P. Glick

The goal of the elimination of racial and sexual discrimination is a most noble one. Discrimination is both ugly and unfair, that it must be obliterated is not a moot issue. What is debatable is the means by which to achieve that end. Currently, affirmative action is the social policy that carries this burden.

The most common types of affirmative action are: giving preferential treatment to minority students in university admissions; using quotas to insure integrated public housing; and extending preferential treatment in the hiring and promoting of minorities. There are those who argue that at all costs adequate minority representation must be achieved to have a truly democratic society. Others claim that however noble, a munificient social policy that overlooks the rights of even a single individual cannot be effective.

An analysis of affirmative action reveals three areas of conflict. Judicial arguments center on the conflict between individual treatment based solely upon personal merit and the goal of the elimination of racial and sexual inequality. Ideological dissent focuses on the differences between the goals of affirmative action and those of racial equality. On a more practical level, many question the inherent efficacy of affirmative action as a means to insure racial equality.

I

The constitutionality of any affirmative action program is predicated upon whether societal or individual rights are paramount. Those in favor of affirmative action claim that only in a fair society can individual rights be secured. Those opposed argue that the only road to social equality is through the securing of individual rights. In every ruling concerning affirmative action the courts have displayed considerable acumen in avoiding this issue.

In Otero v. New York Housing Authority (1973) the Federal Courts upheld the constitutionality of quotas for public housing on the grounds that they prevent "white flight" and maintain integrated public housing. This case justified denying minority rights based upon majority biases. Quotas could be employed to keep whites from leaving public housing. This system could be used to deny adequate shelter to the first person over the quota who applied for it. In Franks v. Bowman Transportation Co. (1976) the Supreme Court upheld remedial practices (that attempt to achieve racial balance) as required by the Civil Rights Act. This decision seems contrary to an April 8, 1964 memorandum, written by the managers of the Civil Rights Act, Senators Joseph Clark and Clifford Case (110 Congressional Record 7213).

> There is no requirement in Title 7 that an employer maintain a racial balance in his work force. On the contrary, any deliberate attempt to maintain such a balance, whatever such balance may be, would involve a violation of Title 7 because maintaining such a balance would require an employer to hire or refuse to hire on the basis of race.

The most heated arguments concerning the constitutionality of affirmative action focus on the practice of giving preferential treatment to minorities in college and professional school admissions. Admissions are a particularly sensitive issue. First, this is the most prevalent form of affirmative action, and second, it is one in which degrees of "benign discrimination" can be measured—e.g. SAT scores, LSAT scores. In 1978 it seemed that a Supreme Court case involving professional school admission policies would finally yield an omnibus ruling on the constitutionality of affirmative action. It didn't.

In 1973 and 1974 Allan Bakke applied to Medical School at the University of California at Davis. Davis' admission program reserved 16 of their 100 places in the freshman class for minority students. Bakke, who had averaged in the 90th percentile on the Medical School Admission Test, was rejected while students who average below the 30th percentile (in 1974) were specially admitted. Bakke sued, claiming that he had been denied his Fourteenth Amendment privileges.

The case reached the Supreme Court, which chose to make Title 6 of the Civil Rights Act of 1964, rather than the Fourteenth Amendment, the issue. Title 6 prohibits racial discrimination in federally funded programs. Any decision rendered by the courts would thus only affect those programs. The Court split. Chief Justice Burger, Associate Justices Stevens, Rhenquist, and Stewart felt that Bakke should be admitted to Davis, that Davis' admission program was unconstitutional, and that whether or not race can be considered in an admission policy wasn't a relevant issue in this case. Rhenquist claimed that only in a class action suit could this be ruled on. Justices Brennan, White, Marshall and Blackmun felt that Bakke should not be admitted, that race can be the decisive consideration in a professional school admission program, and thus, Davis' program was constitutional. Justice Powell swung the tables in all three instances. Powell issued the fifth vote to let Bakke be admitted, and the fifth vote that ruled Davis' admission program unconstitutional. However, on the issue of race considerations Powell sided with Brenen et al. and voted yes. Powell's decision ruled that while "a program for admissions to institutions of higher learning that allows race to be considered as an affirmative factor" was legal.

Perhaps the ambiguity of the Supreme Court's decision is best demonstrated by the contrasting opinions of two prominent black leaders—Jesse Jackson and Vernon Jordan. Jackson claimed the decision to be "a devastating blow to our civil rights struggle," while Ver-

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non Jordan saw it as "a green light to go forward with acceptable affirmative action programs." The key word is "acceptable," for what constitutes an acceptable affirmative action program remains a clouded and contested issue. Since the judicial process offered no definitive answer, it is necessary to look to the ideological foundation as well as sociological impact of affirmative action to render a decision on both its legitimacy and its effectiveness.

II

Affirmative action and racial/sexual equality are not one and the same. The former is simply a means employed to achieve the latter. Proponents argue that affirmative action benefits society and is necessary to amend past discrimination and achieve adequate minority representation. Opponents claim that affirmative action suppresses individual liberty and merely replaces one form of discrimination with another. At the core of this disagreement is the fact that equal opportunity requires a color-and-sex-blind policy, whereas affirmative action specifically calls for their consideration.

Affirmative action attempts to develop and maintain adequate and proportional minority representation in both public and private institutions. Representation calls for a consideration of numbers which in turn calls for, however vicariously employed, quotas. Unfortunately, quotas can just as easily be used to keep the numbers of minorities down (as they have in the past) as they can to keep the numbers of minorities up. A graver problem is that affirmative action calls for representation in institutions that by nature do not require it. Representation that causes standards of excellent to be compromised is disfunctional. Ernest Van Den Haag recently wrote in the National Review:

> Institutions of higher learning are not political bodies and cannot represent the voters without defeating their purpose which is to teach and do research. So too with business enterprises. To require representatives in faculties or student bodies is no more justified than to require representatives in Chinese restaurants, prisons, hospitals or opera houses. These institutions have non-representative functions which require admission (or confinement) criteria relevant to these functions regardless of representativeness.

Another ideological tenet of affirmative action is that by tipping the scales in favor of those previously discriminated against, some type of racial/sexual balance can be achieved. Again, this policy seems questionable. Is any man culpable for the sins of his ancestors? Should today's Germans be made to pay for Hitler's crimes? By the same token, all minorities are not discriminated against equally. The situation of a Black growing up on Park Avenue and that of a Mexican-American growing up in Harlem aren't comparable. Amatai Etzioni, professor of Sociology at Columbia University, recently exaggerated the problem to ludicrous proportions when she suggested that, "if past discrimination is the basis for preferential treatment, then, in all seriousness, lesbians are entitled to extra considerations since they suffered more exclusion than other women in the past..."

III

The litmus test for affirmative action must be its effect on society. In the zero sum game of social policy, a personal inequity can only be justified in the name of social welfare. The wealthy pay more taxes for obvious reasons, but the social effectiveness of affirmative action remains unclear. It is difficult to discern how the whole of society benefits from a situation in which the most qualified are discriminated against. Shouldn't the most qualified laywers practice, the most qualified policemen join the force? Does a minority patient benefit from the services of a less qualified minority surgeon?

Several questions arise from the analysis of affirmative action's effectiveness. The first of these is who decides how much preference is bestowed upon whom. If this decision is left up to the individual schools and employers the social goals of affirmative action may not be met. School A may desire a high percentage of Asian-Americans, school B may want more women. On the other hand, is it fair to make this decision via the political process if the basis for making the decision in the first place is under-representation within that very process?

Another interesting issue is that of a self-destruct mechanism. What empirical evidence can possibly support a decision to either expand or contract affirmative action? A recent proposal to install a minority quota on the Harvard Law Review raises this issue. Once accepted into Harvard Law School, a minority students is at the same advantage/disadvantage as any other student. For this reason, minority under-representation on the Harvard Law Review cannot be taken as ipso facto evidence of discrimination. Furthermore, is the quality of the Review to benefit from this action?

The most serious problem of affirmative action is that it exacerbates rather than obliterates discrimination and prejudice. Qualified minority students can never know whether they were accepted on the basis of their own personal merit or because of a benificent social policy. Similarly, unqualified majority students can blame their rejections on affirmative action. This is hardly the proper atmosphere in which to foster a detente between races and/or sexes. Self-confidence, a quality essential to success in any endeavor, evaporates in those discriminated for. Those discriminated against fester an unrelenting hostility based upon contempt. In the words of Midge Decter—Executive Director, The Committee for the Free World:

> Before long the irony will have escaped no one; by means of a policy intended to shortcut past discriminatory practice, the American populace will have been encouraged to a kind of prejudice that, if more subtle, will also for that reason be infinitely more difficult to overcome.

IV

I have been especially and purposely critical of affirmative action. Social policy, like any citizen, is innocent until proven guilty. The burden of proof lies not with those in favor of, but rather with those opposed to affirmative action. Current affirmative action policy is ideologically unsound. Affirmative action cannot be based upon a two-wrongs-make-a-right attitude. Previous discrimination isn't mitigated through the sanctioning of its reverse. Furthermore, calling for representation where it isn't necessary is detrimental not only to those discriminated against, but to the whole of society as well.

Affirmative action should be offered to those discriminated against, and not exclusively to minorities. The two are not always the same. Affirmative action should only be offered on the grounds that a native ability had been repressed as the result of a social inequality, and thus, as members of society it is our responsibility to rectify the injustice.

The only place for affirmative action is at the college level. The future leaders of our country, black or white, male or female, must acquire the necessary sensitivity with which to equitably deal with minorities. This can only be achieved through exposure and experience. The New Republic writes:

> The purpose of affirmative action is not and cannot be to guarantee advancement for the members of a particular group. Its purpose is to break down the patterns of prejudice and discrimination that once went along with and often have outlasted the old official discrimination; to make sure that talented individuals from every social group have a chance to shine.

When this is achieved, affirmative action policy will have reached a noble end through a fair means.

Tuition Tax Credit

Continued from page 8

up once such a program is enacted; many of these may arise from the purely practical problems of running the program—how to set up a fair credit or how to deal with schools that raise tuition by the level of the credit, for example. Correction of these problems will likely involve more rules and more bureaucracy which in the end may be just as distasteful as the extreme picture painted earlier.

Witness the case of nursing homes, an industry which expanded dramatically after federal health programs began to pay their costs. The growth of low quality, unsafe facilities forced states to intervene and regulate what had become a genuine scandal of fraud and maltreatment. Inevitably, the implementation of an indirect payment or subsidization plan for non-public education (such as the tax credit bill) will require not the design of an optimal distribution method but rather the evolution of a highly-regulated system.

With the onset of tax credits and the subsequent regulation described above, private schools run the risk of losing the freedom to offer something other than "public education."

Senator Moynihan, in his article, refutes the contention that tax credits will institute a "zero-sum" game to the detriment of public schools; what he ignores, however, is the long term threat to private schools: that tuition tax credits and their inevitable regulation - may in fact erode the factors discussed earlier that give them "a distinct but mutually-reinforcing place in the nation's educational system." By enacting tuition tax credits we invite a system of regulation to make them work. This regulation, however, may well destroy the very qualities that lead consumers to value private schools as an educational alternative in the first place.

What is the answer, then? As I said earlier, we must separate the issue of financial support for a distinctly different form of education from the method of providing this aid. These are two separate questions of public policy, and as such should be considered separately. The first, whether or not to support private education with its different goals and different methods, seems to have already been decided by our legislators in the Elementary and Secondary Education Act of 1965. In Senator Moynihan's words, "...we proposed aid to all children and all schools within the constitutionally permitted boundaries." It must be made clear, however, that such a commitment is not one to what we consider "public education," but rather to an alternative system with different educational goals and practices than those of our system of free schools. This alternative can exist precisely because of its non-public nature, which frees these schools from adherence to the mandates of public education. Fulfillment of this commitment through tuition tax credits both threatens non-public schools' uniqueness and cloaks the vital differences between the two types of education under the false veil of "public schooling."If Senator Moynihan *et al.* desire only the financial help for mostly middle and upper class parents of children already in private schools, let them not confuse the debate with rhetoric and ill-destined schemes designed to hide their true motivation.

The second question, that of finding a method to accomplish the 1965 goal within constitutionally permitted boundaries, remains open; whatever its constitutionality will be, a tuition tax relief program, as I have shown, does not seem to be a very good method of providing this aid. If, in fact, we as a nation truly wish to aid non-public schools, or only Catholic or fundamentalist or Moslem schools, let us admit it and do so directly without the inefficiencies and unwanted side effects inherent in the concept of tuition tax credits. Parents will benefit from the lower fees this would make possible and our commitment to a form of education in addition to public schools will be made manifest. Having decided to support an alternative form of education, it remains then for our legislators to devise a method which is both within the constitutionally permitted limits and direct and unencumbered enough to preserve the desirable aspects of the private educational alternative while promoting "equal opportunity" and "parental choice." Tuition tax credits, unfortunately, do not meet these tests.

The Soviet Gulag: 'Reeducation' Through Starvatio

Stephen Rickard

On March 2, 1981, Soviet authorities informed Silvi Kukk that her husband, a forty-year-old chemistry professor, was dead. A thousand kilometers away from her, near the frozen coast of the Barents Sea, the husband, Juri, had been serving a term in a Soviet labor camp, sentenced for "distributing anti-Soviet propaganda." Eight months into his term, Juri began a hunger strike. Thoughout the bitter Arctic winter he refused food until, after four months, his protest ended in death.

Almost exactly twenty-five years earlier, when Juri Kukk was fifteen, Nikita Khrushchev took the podium at the Twentieth Congress of the Communist Party of the USSR and denounced "the cult of person" of Stalin and the heinous crimes that occurred under his leadership—"It is clear that... Stalin showed in a series of cases his intolerance, his brutality and his abuse of power... he often chose the path of repression and physical annihilation." Krushchev went on to discuss the "many thousands of honest and innocent Communists" who died during the purges, pledging to eradicate "the cult" and to return to the true path of Marxist-Leninist doctrines.

That speech initiated the Soviet policy of "de-Stalinization," but one may question how far its winding, slippery course has actually taken Soviet labor camp policy. The available evidence indicates that the conditions which helped to make Silvi Kukk a widow are not all that far removed from those of pre-1956 camps. Apparently, the Stalinist legacy is not yet spent.

Within the Soviet penal system today, the "troika" of repression is drawn by classic elements of the Gulag—chronic hunger, extreme cold and exhausting work norms. Perhaps the worst of the three is hunger. The absolute maximum reported calorie supply for prisoners in Soviet labor camps is 2,800 calories per day in a "special" diet for heavy labor workers. More typical is a diet of approximately 2,500 calories. Unfortunately for Soviet prisoners, a 30-year-old man weighing 154 pounds, resting comfortably needs up to 2,400 calories simply to digest his food and maintain life.

Prisons, where roughly 5 percent of all prisoners are confined, are much worse. The maximum diet contains around 2,200 calories and is frequently much lower. Punishment rations at Vladimir Prison provide a prisoner with 1,350 and a mere 850 calories on alternate days and all prisoners transfered to Vladimir are kept on punishment rations for the first month, apparently as a "welcoming" gesture.

These figures alone might lead one to believe that prisoners on the average diet at least in the labor camps cling to a fragile margin of sufficiency. Such is not the case, because the other two factors, cold and exertion, create an enormous demand for additional nutrition. According to Amnesty International, the international standard for a man working "very actively" is 3,100 to 3,900 calories per day, leaving prisoners with a "calorie deficit" of around 1,000 per day. Other sources have placed the daily deficit closer to 2,000 calories. It is possible to be somewhat more specific. Prisoners in "strict" or "special" regime (two of the four Soviet labor camp categories) are typically employed at bricklaying, lumbering or similarly exhausting work. The stricter the regime, the harder the labor. It is estimated that a brick-layer or wood-cutter requires 4,480 and 5,200 calories respectively for sustenance. Even assuming the "special diet," that leaves deficits of 1,680 and 2,400 calories every work day, six days a week.

This factor even applies to the prison population. In the past, the lower prison ration was partially off-set by the inactivity of prisoners. However, in early 1975 it became mandatory for prison inmates to perform physical labor. All this is aggravated by the cold. Roughly 75 percent of the USSR lies above the 50th parallel, which runs through Winnipeg, in Canada, around 100 miles north of the United States. The camp which housed Juri Kukk during the last twelve months of his life, for instance, lies at about 69 degrees north latitude, well within the Arctic Circle and north of all but a fairly small portion of Alaska. In such camps, the temperature can reach —50° C.

The necessity of maintaining body temperature drastically increases the need for caloric intake, and while convict rations are theoretically adjusted seasonally, in reality, the extreme cold adds another crushing burden upon the prisoner's already insufficient diet. As one prisoner put it, "your hungry body, as if to spite you does not generate heat... For a hungry person to be kept in the cold is a most effective 'reeducation.'"

It is quite possible for a prisoner's rations to drop below these already inadequate levels. As mentioned above, the prison "punishment diet" provides as little as 850 calories every other day—450 grams of bread and water. Camp punishment cells can go as low as 1,300 calories per day. When one considers these starvation levels, it may seem ironic to note that the food that *is* served is of horrendous quality. Even if it did provide sufficient caloric intake, the prisoner's diet is deficient in crucial animal proteins and vitamins. Aside from these considerations, the food is unsavory and, on occasion, despite the prisoners' great hunger, inedible. One prisoner described the situation this way:

> We are served rotten potatoes and cabbage. Maggots and cockroaches are often found in the food, and the mess hall is frequently permeated by the stench of rotten fish. Despite chronic hunger, the inmates refuse their supper whenever rotten fish is served.

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Another prisoner went on a hunger strike "because of the worms one found in the soup everyday." Cases of food poisoning are far from rare.

Specifically, how do these conditions affect prisoners? The most pervasive impact of malnourishment, aside from the constant suffering from hunger, is a deterioration of the prisoner's health. The most common complaint is stomach ulcer, and it is believed that most prisoners suffer from ulcers or other gastric complaints within three years. Ultimately, conditions of permanent malnutrition, harsh climate and heavy labor render some prisoners chronic invalids and produce premature deaths. The conditions have been likened to prisoners in slow execution—a death penalty unofficially sanctioned by the authorities. In the understatement of a Soviet magistrate, "long term imprisonment could have the most serious consequences for the health of the accused..." These horrors are not the result of occasional abuse or individual caprice. They are the product of systematic and officially sanctioned policy. While Article I of the Fundamentals of Corrective Labor Law states that "(the) execution of a sentence shall not aim at inflicting physical suffering or degrading human dignity," it is frequently noted that this clause in no way prohibits the authorities from inflicting suffering—it merely excludes it from the *aims* of Soviet penology. In fact, for example, food levels are set by the USSR Council of Ministers, not by individual camp administrators.

Hunger, cold and strenuous labor have a magnifying effect on each other, acting in a "vicious circle" to punish, "reeducate" or, in the vernacular, to "break" an obstinate prisoner's resistance, a fact frequently documented in the *Chronicle of Current Events in the USSR* and the *Chronicle of Human Rights.* One physician commented that the total efforts of the camp administration "were directed at killing everything that is human in a man." A prisoner sarcastically remarked, "Sometimes, perhaps, the suspicion enters your mind that all this... is meant to kill your individuality, to... change you into a robot that starts to salivate at the sound of the siren calling you to lunch." It would seem that the nation of Pavlov has discovered a practical use for his pioneering research.

Yet, for all that we know of the Soviet penal system today, does it really compare to the "Great Terror" (to borrow Robert Conquest's apt phrase) under Stalin? Descriptions more recent and more candid than Khrushchev's suggest convincingly that he underestimated (or understated) the number of "innocent Communists" who died by as much as a factor of 100 percent. It is likely that millions, not thousands, died in the labor camps of the '30s, '40s and early '50s. Can anything currently taking place in the Soviet Union today approximate that?

Probably not. There are several reasons to believe that Soviet labor camps and prisons operate on a quantitatively different scale today. First, some authorities estimate that more prisoners died at a single labor complex under Stalin, the infamous Kolyma gold mining area, than are "embraced" by the totality of the Soviet penal system today. In 1953, the most conservative estimate of the Committee Against Concentration Camp Practices placed the number of persons in Soviet camps at well over 3 million, a "minimum figure, which may have been far exceeded..." They acknowledge other estimates ranging as high as 15 million.

The highest recent estimate is that of the U.S. Central Intelligence Agency, which suggests a figure in the vicinity of 2.5 million people. Harold Berman and Peter Reddaway, both experts on the Soviet Union, and Amnesty International accept a figure closer to one million. Recently, Peter Juviler of Columbia University proposed the astonishing precise estimate of 1,612,378 prisoners as of January 1, 1977, based upon information he received via Fridrickh Neznansky, apparently derived from official Soviet Ministry of Internal Affairs sources. Thus, the best contemporary estimates place the prisoner population currently detained in the Soviet Union at about one-half of a cautious minimum figure under Stalin.

The quantity of food provided is also probably greater today than in the '30s and '40s. In Kolyma, a prisoner received a maximum 2,100 calories (around 800 grams of bread) for the nearly impossible task of fulfilling 100 percent of his production norm. A more normal ration was approximately 1,400 calories (500 grams of bread). Several former prisoners have testified that they received only 300 grams of bread a day with a bowl of watery soup. This constitutes starvation as a basic ration.

The argument has been made that in the late '40s and early '50s a concerted effort was made to reduce the death rate in the camps. With the sudden decline in the number of new arrivals, it became crucial to keep the current prisoners alive in order to fulfill production requirements (a horrible and ironic comment upon the purpose, functioning, and barbarity of the camps). According to the periodical *Saturn,* the 1950's equivalent of the *Chronicles,* "There is a phrase that recurs invariably in all the testimonies: until then 'the prisoners died like flies.'" Up until 1948, the "screws were tightened" (a phrase still used by Soviet prisoners) continually until prisoners, in despair, actually seized control of the Vorkuta complex. In that year, what the prisoners called "the big hunger" began to disappear. In the words of Professor Feldbrugge, "the almost apocalyptic aspect of Stalinist terror has disappeared...."

However, while the numbers of prisoners decreased and the quantity of food increased, the camps and the food did not change *qualitatively.* Hunger was and still is used as a punitive device. The current ration is better, but still abysmal. Punishment rations at the camps and prisons are below the average diet at Kolyma and the 450 grams of bread given every other day in Vladimir prison punishment cells is close to the diet of the *dokhodyaga* of the Stalinist days—the "goner."

More importantly, even the best diet of both past and present camps was inadequate. At the infamous

prisoner-of-war camp on the River Kwai, where Japanese administration of the compound shocked the Anglo-American sense of reasonable treatment (even during wartime), prisoners received 3,400 calories a day—well above even the present Soviet norm, especially when the more favorable climate of the Japanese camp is considered.

The desperation which chronic hunger engendered in current prisoners is the same as that of the "old" camps—

> Some prisoners are driven by the permanent malnutrition to kill and eat crows and, if they are lucky, dogs....(One prisoner) found a way to getting potatoes while in the hospital section. He overate and died—the potatoes were raw. (Anatoly Marchenko, 1975).

> Prisoners were so hungry that they ate... the carcass of a horse which had been lying for more than a week and which stank and was crawling with flies and worms. At the Utinyi prisoners ate half a barrel of grease which had been brought to oil the wheel-barrows. (General Karpunich, Lolyma, 1940's)

Both Marchenko and Karpunich describe prisoners eating moss and grass "like reindeer." And Edward Kuznetsov, serving a sentence in Mordovia in the '70s, describes a breakfast *kasha* remarkably similar to and equally unappetizing as the "buckshot" served to Boris Podolak when he was imprisoned at Vorkuta in 1936.

Nor have Soviet prisoners benefited from international efforts to establish minimum human rights standards. In theory, ration levels provide the "biologically necessary" food, a standard susceptible to varying interpretations. But, however interpreted, the standard fails, both in the abstract and in implementation, to satisfy the letter or spirit of Article 20 of the Standard Minimum Rules for the Treatment of Prisoners established by the United Nations. It provides that—

> Every prisoner shall be provided... with food of nutritional value adequate for health and strength, of wholesome quality and well prepared....

The Soviet penal system is a study in the art of providing biologically necessary food which is *not* "adequate for health."

In the opinion of some, the "biologically necessary" standard also contravenes Article 10 of the Convention on Civil and Political Rights which has been ratified by the Soviet Union. That Article provides, inter alia, that "All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human person."

It seems unfortunate but true that, after a burst of liberalization in the '50s, the camps began to return to harsher ways. This "tightening" process continued through the '70s until most of the correctional reforms were undone (with the two exception of juvenile labor camps and the colony-settlements for "negligent" offenders). Moreover, experts in Soviet criminal law point out that the relaxation with regards to political prisoners was accompanied by a "harsher" attitude towards felons. Several authorities feel that the various labor camp regimes continue to grow progressively, or, more appropriately, regressively harsher.

What has changed the last, qualitatively, about the camps is their inner character or "style." Solzhenitsyn tells us that starvation was "an integral element" in an entire system of coercion under Stalin, as were lethal doses of cold and labor. This may be the reason that, while the term labor "colony" has replaced the phrase labor "camp" in official terminology, contemporary prisoners continue to use the archaic phrase, symbolizing their belief that the "camps" have not changed. As Viacheslav Chornovil and Boris Penson, two former labor camp prisoners, describe—

> Neither physically nor morally has much changed here, whatever changes may be claimed for the rest of Soviet life. "Inertia of style," has maintained the power of the repressive machine of Gulag.

In the final analysis, one concludes that today's Soviet labor camp or prison has a great deal in common with its predecessor in its repressive style and sanctioned use of hunger to impose great physical suffering upon prisoner. A system is still in place, to be expanded at will, and that system reflects a rigidly controlled, repressive society. That fewer prisoners suffer or suffer fatally with less frequency is good, but irrelevant to the suffering of those who are imprisoned today.

There is a tragic irony in the fact that under conditions of chronic malnutrition, the only avenue of protest available to Juri Kukk was that of an even greater, self-imposed deprivation—the hunger strike. Under these circumstances one can only speculate as to when and if the malignant practices of the Gulag will be eviscerated once and for all from Soviet life.

Evaluating the Reagan Revolution

Continued from page 6

decade unless government encourages the private sector to produce alternatives to crude oil and to conserve the crude oil that is now being used.

I don't pretend to know where this new Reagan phase will take us in every area of policy or how our nation will deal with the massive shift away from government. But I do believe that government must play a crucial role in ensuring social justice and accomodating social change.

It is essential for our future that we not reject government and those who serve it, not accept shibboleths and myths without exploring their validity, not believe that because some things government does do not work well, nothing it does works well.

Be Serious

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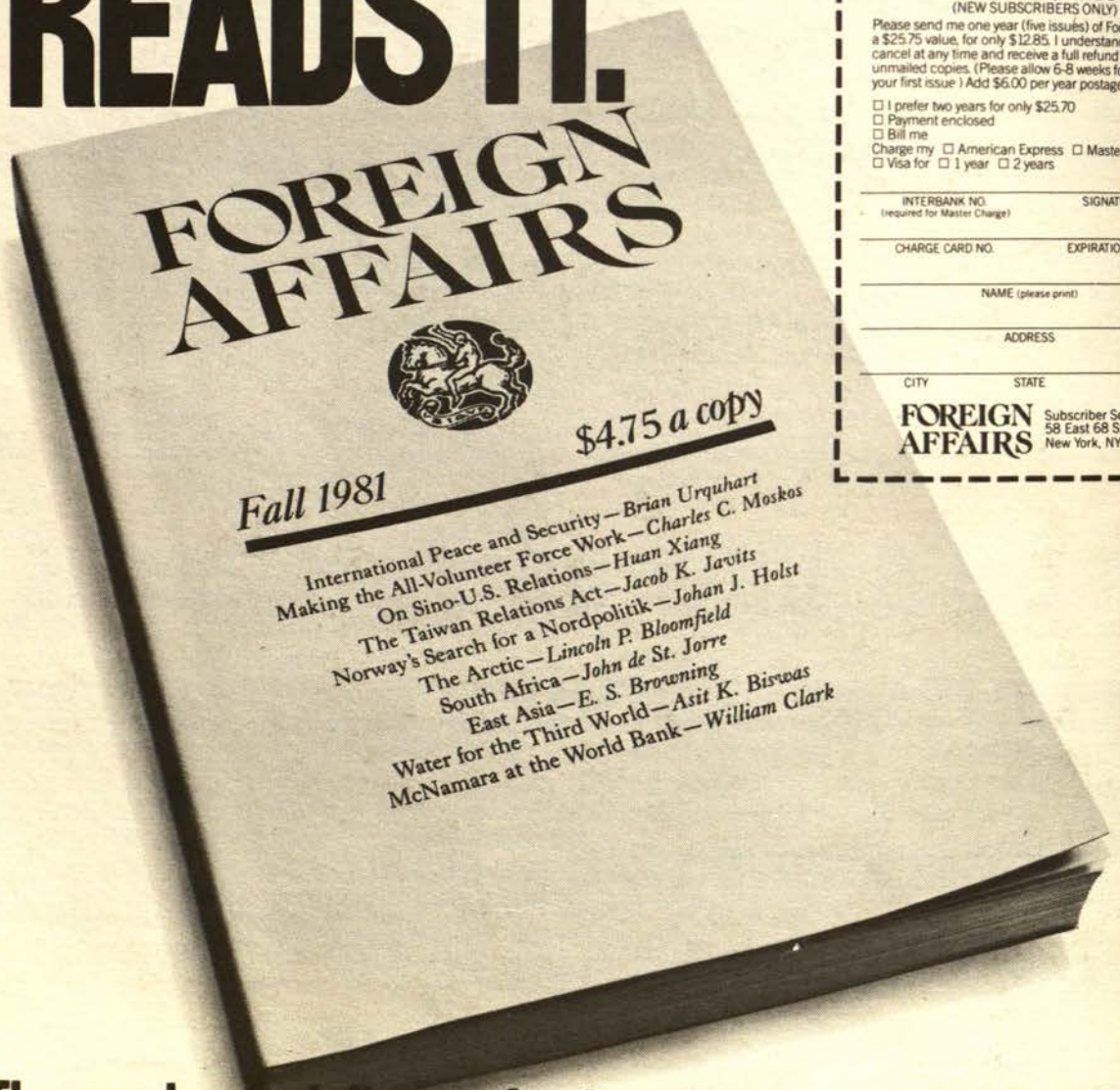
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